



Republic of the Philippines
DEPARTMENT OF LABOR AND EMPLOYMENT
Intramuros, Manila



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SUBJECT : Guidelines on the Prevention and Elimination of Violence and Harassment in the Workplace

Date : 31 July 2026

WHEREAS, on February 20, 2024, through the Department of Labor and Employment (DOLE), the Philippines deposited in the International Labour Organization the ratification instrument on ILO Convention No. 190, or the Violence and Harassment Convention 2019. This landmark action re-affirms the country's continued commitment to create enabling mechanisms and policies that will allow workers to navigate the world of work free from any form of violence and harassment, including gender-based sexual harassment.

WHEREAS, pursuant to Article 5 of the Labor Code of the Philippines, as amended, Title VII¹ of the Administrative Code of 1987, and in relation to Republic Act (RA) No. 7877 (or the *Anti-Sexual Harassment Act of 1995*), Article IV, Section of RA No. 11313 (or the *Safe Space Act*), and their respective implementing rules and regulations, the DOLE, through the Secretary of Labor and Employment, is tasked and mandated to promulgate rules or policies that shall promote and ensure that every Filipino worker will be protected and safe in their place of employment.

WHEREAS, the Department of Labor and Employment (DOLE) prepared the Department Order providing guidance and enjoining private establishments in adopting a workplace policy that will prevent, address, and mitigate all forms of violence and harassment in the workplace, including gender-based sexual harassment. The proposed Guidelines was endorsed to the National Tripartite Industrial Peace Council (NTIPC), which provisionally approved the same on April 07, 2026, subject to further refinement based on its comments and inputs.

WHEREAS, this policy adopts a voluntary approach anchored on cooperation, respect, trust, and active participation of both employers and their workers. It is likewise advisory in nature and is aligned with the principles of tripartism and social dialogue, allowing for joint accountability and responsibility in its adoption and promulgation at the plant or establishment level.

NOW, THEREFORE, through the authority vested upon the Secretary of Labor and Employment, under the Revised Administrative Code of 1987, Labor Code of the Philippines, as amended and renumbered, relevant laws, rules and regulations, the following Guidelines are hereby promulgated:

¹ Rule VII, Section 2 (2) and 3 (8), EO 292, s. 1987

Section 1. Purpose. In accordance with relevant national laws, the Labor Code, as renumbered, and in consultation with employers' and workers' groups, the government, through the Department of Labor and Employment (DOLE) shall adopt and implement an integrative policy that is diverse, inclusive, and gender-responsive toward the prevention and elimination of violence and harassment in the world of work. Such policy, whenever applicable, will include the following:

- a. ensure that relevant workplace policies address violence and harassment;
- b. adopt a comprehensive strategy in order to implement measures to prevent and combat violence and harassment;
- c. establish or strengthen existing enforcement and monitoring mechanisms;
- d. develop tools, guidance, education and training, and raise awareness, in accessible formats as appropriate;
- e. establish a complaint reporting and case handling system and support pathways for workers who are victim-survivors of violence and harassment in the workplace; and
- f. ensure the effective means of inspection and investigation of cases of violence and harassment, through labor inspectorates or other competent bodies.²

Specifically, this Guidelines aims to provide private establishments the parameters to observe in promoting the welfare and protecting the right of everyone, both workers and employers, to a world of work free from violence and harassment.³ It shall likewise assist employers, including their authorized representatives and their contractors and sub-contractors, and workers in developing a set of policies aimed at preventing, deterring, and addressing violence and harassment in the workplace.

Section 2. Coverage. This Guidelines will cover all establishments in the private sector, regardless of size, category, nature of business, number of workers, and their workers' employment arrangement. It will also include all sites, locations, spaces, where work is being undertaken by a worker within or outside the premises of the usual place of business of the employer.⁴

Also covered are the following categories of workers, as provided under ILO C190 and the Labor Code, as amended and renumbered:

- a. workers and other persons in the world of work, including employees as defined by national law and practice, as well as persons working irrespective of their contractual status, persons in training, including interns⁵, and apprentices⁶;
- b. workers whose employment has been terminated;
- c. volunteers, jobseekers and job applicants; and
- d. individuals exercising the authority, duties or responsibilities of an employer; and

It will apply to all workplaces, including:

- a. areas where workers work;
- b. in places where the worker is paid, takes a rest break or a meal, and uses employer provided sanitary, washing, and changing facilities;
- c. during work-related trips, travel, training events, social activities, as well as when commuting to and from work;
- d. through work-related communications, including those enabled by information and communication technologies, such as the use of the digital space or the internet;
- e. through work done or dependent on the use of internet-based platforms; and

² Article 4.1 (b) (c) (d) (g) (h), ILO C190.

³ Article 4.1, ILO C190.

⁴ Rule VI, Section 18, IRR of RA 11313.

⁵ Rule II, Section 1 (m) (q), DOLE Department Order No. 179-17 (Implementing Rules and Regulations of RA 10869).

⁶ Article 58, The Labor Code of the Philippines, as amended and renumbered.

- f. in employer-provided accommodation.⁷

Section 3. Who may commit workplace violence and harassment. For purposes of context, violence and harassment in the workplace may be committed between and by: (a) a superior officer to a subordinate; (b) peer to peer; (c) a subordinate to a superior officer⁸; (d) customer/supervisor/manager to business contact⁹; and (e) client/customer to employee¹⁰.

Section 4. Acts of Violence and Harassment in the Workplace. Violence and harassment in the world of work cover a broad range of unacceptable and unwelcomed actions and behaviors that aim at, result in, or are likely to bring harm to an individual and create a hostile work environment. This may be done in one or repeated instances, initiated physically, verbally, written or online, with behavior ranging from minor cases of disrespect to serious acts of physical, psychological or sexual assault, which may constitute a criminal offence under national laws. The following are considered as offending conduct or behaviors that will be considered as acts of violence and harassment in the workplace, which will guide employers and workers in identifying the said act but this shall in no manner preclude said parties to jointly expand said list:

- a. **Physical violence** includes assault, such as pushing, grabbing, shoving, tripping, slapping, biting, scratching, hitting, kicking, or throwing an object.¹¹
- b. **Psychological violence and harassment** include bullying or display of mob behavior, making fun or derogatory comments due to a worker's family, sexuality, gender identity, race or culture, education or economic background, practicing harassing performance monitoring procedures and performance reviews and general exclusion at work hindering the workers from effectively and efficiently performing work-related tasks and activities.¹² Likewise included is the patterned or repeated conduct of intimidation, humiliation, isolation, open threats against an individual or group or workers that may cause emotional and mental anguish, eroding a person's sense of dignity, safety, and psychological well-being, as certified by a competent mental health practitioner.
- c. **Economic Violence and harassment** include the unjust, malicious, deliberate withholding of wage and wage related benefits due to employees intended to intimidate, punish, coerce, retaliate against of otherwise exert undue power on the employees. This will also include the willful and unjust delay in the release of final pay and Certificate of Employment, and remittance of social protection and welfare benefits.¹³
- d. **Sexual violence and harassment** include the following¹⁴:
 1. sexual assault, rape, indecent exposure, stalking or obscene communication;
 2. unwelcome physical contact including patting, pinching, tickling, stroking, kissing, hugging, fondling, brushing up against, cornering, or inappropriate touching;
 3. asking intrusive questions about an employee's private life or body;

⁷ Article 3, ILO C190.

⁸ Rule VI, Section 18, RA 11313.

⁹ Page 11, *Violence and Harassment at Work: A Practical Guide for Employers*. Geneva: International Labour Office, 2022.

¹⁰ Page 11, *Violence and Harassment at Work: A Practical Guide for Employers*. Geneva: International Labour Office, 2022.

¹¹ Page 13, *Violence and Harassment at Work: A Practical Guide for Employers*. Geneva: International Labour Office, 2022.

¹² Page 13, *Violence and Harassment at Work: A Practical Guide for Employers*. Geneva: International Labour Office, 2022.

¹³ In such instances this shall be endorsed to appropriate government Agency/ies, as stipulated under Section 2 (f), Rule II, DOLE D.O. No. 249, s. 2025.

¹⁴ Page 13, *Violence and Harassment at Work: A Practical Guide for Employers*. Geneva: International Labour Office, 2022.

4. making insulting comments or jokes about someone's gender identity or sexual orientation;
5. repeated asking for dates despite being rebuffed;
6. asking for a sexual favor in exchange for a promised job or promotion;
7. sharing or displaying sexually explicit pictures, videos, screen savers or posters;
8. sending sexually explicit email or text messages;
9. stalking, including cyberstalking; and
10. Others as further defined and described under RA 7877 and RA 11313.

Section 5. Definition of Terms. As used in this Guidelines, the following definitions shall be adopted:

- a. **Collective Bargaining Agreement** refers to a contract entered by the employer and the workers' sole and exclusive bargaining agent on the wages, hours of work and all other terms and conditions of employment including proposals for adjusting any grievances or questions arising under such agreement and executing a contract incorporating such agreements if requested by either party.¹⁵
- b. **Contractor** refers to any person or entity, including a cooperative, engaged in a contracting or sub-contracting arrangement providing either services, skilled workers, temporary workers, or a combination of services to a principal under a Service Agreement.
- c. **Committee on Decorum and Investigation (CODI)** refers to an independent internal mechanism or a committee in private establishments that acts as the main body in the investigation and resolution of complaints constituting acts of harassment, as defined by RA 7877 and RA 11313.
- d. **DOLE** refers to the Department of Labor and Employment, created under Executive Order No. 292, otherwise known as the Administrative Code of 1987, and Executive Order No. 126, as amended, including its bureaus, services, regional offices, and attached agencies.
- e. **DOLE Regional Office (RO)** refers to the DOLE Regional Offices, including its field, provincial and extension offices.
- f. **Employer** refers to any person, natural or juridical, domestic or foreign, who carries on in the Philippines any trade, business, industry, undertaking, or activity of any kind and uses the services of another person who is under its orders as regards the employment.¹⁶ It shall also include any person acting directly or indirectly in the interest of an employer in relation to an employee and shall include the government and all its branches, subdivisions and instrumentalities, all government-owned or controlled corporations and institutions, as well as non-profit private institutions, or organizations.¹⁷
- g. **Family Welfare Program (FWP)** is an advocacy program that draws corporate or management support in the development and administration of workplace policies on worker's welfare, composed of the eleven (11) dimensions which establishments may choose from, namely: (a) Reproductive Health and

¹⁵ Article 263, P.D. 442, Labor Code. Further, as indicated in *Honda Phils., Inc. v. Samahan ng Malayang Manggagawa sa Honda*, G.R. No. 145561, 15 June 2005, a CBA refers to the negotiated contract between a legitimate labor organization and the employer concerning wages, hours of work and all other terms and conditions of employment in a bargaining unit.

¹⁶ Section 8 (c), Republic Act No. 11199, otherwise known as the "Social Security Act of 2018".

¹⁷ Article 97 (b), Labor Code of the Philippines, as amended and renumbered.

Responsible Parenthood; (b) Education; (c) Gender Equality; (d) Spirituality or Values Formation; (e) Income Generation/Livelihood/Cooperative; (f) Medical Health Care; (g) Nutrition; (h) Environment, Protection, Hygiene and Sanitation; (i) Sports and Leisure; (j) Housing; and, (k) Transportation. The Program is mandatory for establishments employing more than 200 workers as required under Article 132 (previously Art. 134) of the Labor Code).

- h. **Family Welfare Committee (FWC)** refers to a plant-level committee that establishments with more than two hundred (200) workers are required to constitute that will be responsible for planning, organizing and implementing an in-plant family welfare program focusing on the eleven (11) FWP dimensions.¹⁸
- i. **Gender** refers to a set of socially ascribed characteristics, norms, roles, attitudes, values and expectations identifying the social behavior of men and women, and the relations between them.
- j. **Gender-based Sexual Harassment (GBSH)** refers to specific acts penalized by Republic Act No. 11313 or the Safe Spaces Act.
- k. **Occupational and Safety Health (OSH) Committee** refers to a body created within the workplace tasked with the authority to monitor, inspect, and investigate all aspects of the work pertaining to the safety and health of workers.
- l. **Violence and Harassment** refer to a range of unacceptable behaviors and practices, or threats thereof, whether a single occurrence or repeated, that aim at, result in or are likely to result in physical, psychological, sexual or economic harm and includes gender-based violence and harassment.¹⁹
- m. **Worker** refers to any member of the labor force, whether employed or unemployed,²⁰ including the categories of workers as described under Section 2 of this Guidelines.
- n. **Workplace** refers to any site or location where workers need to be or to go to by reason of their work, and which is under the direct or indirect control of the employer.

Section 6. Development of a Workplace Policy in the Prevention and Elimination of Violence and Harassment in the Workplace. Employers are strongly encouraged to adopt and implement a workplace policy that will prevent, deter, and address violence and harassment in the workplace, including gender-based sexual harassment.

This workplace policy can include, among others, the establishment of a set of policies, rules, regulations, strategies, and programs that aim to prevent all forms of discrimination,²¹ including gender-based discrimination, and institute administrative procedures and penalties for violating the policy on violence and harassment in the workplace, in conformity with the relevant provisions of ILO C190, Republic Act No. 11058 (Act Strengthening Compliance with Occupational Safety and Health Standards and Providing Penalties for Violations Thereof), the Safe Spaces Act, the Anti-Sexual Harassment Act of 1994, and other related laws and issuances for the safety, health, and protection of workers in the workplace.

¹⁸ Section 6, DOLE Department Order No. 56-2003 (Rationalizing the Implementation of Family Welfare Program (FWP) in DOLE).

¹⁹ Article 1 (1) (a), ILO C190.

²⁰ Article 13, Labor Code of the Philippines, as amended and renumbered.

²¹ Section 4, Letter (e), RA 11058.

The workplace policy will include a zero-tolerance statement to all forms of violence and harassment in workplaces. It will be inclusive, integrated, diverse, and gender-responsive in preventing and eliminating violence and harassment in the workplace. It will likewise promote, and realize the fundamental principles and rights at work, namely freedom of association and the effective recognition of the right to collective bargaining, the elimination of all forms of forced or compulsory labor, the effective abolition of child labor, and the elimination of discrimination in respect of employment and occupation, as well as promote decent work, with a view to preventing and eliminating violence and harassment in the workplace.

Section 7. Implementation of a Workplace Policy in the Prevention and Elimination of Violence and Harassment. To provide private establishments with greater flexibility in adopting the core principles of ILO C190, establishments, in consultation with its workers, may opt to carry out the provisions of this Guidelines, through any of the following modalities:

- a. **Development of a separate or stand-alone workplace policy.** In instances wherein the establishment is unorganized or non-unionized, the said policy will be carried out and implemented as a separate or stand-alone workplace policy. Following this modality, employers and workers should mutually agree on the manner, implementing structure, and terms and conditions that will be included in the said company policy. (see **Annex A: Sample Company Policy on Workplace Policy in the Prevention and Elimination of Violence and Harassment**)
- b. **Use of Collective Bargaining Agreements (CBAs).** Whenever possible the employer and their workers, through its Sole and Exclusive Bargaining Agent (SEBA), may include economic and non-economic provisions into the CBA regarding the prevention and elimination to all forms of violence and harassment in the workplace. This will include, among others, the provision of additional company provided benefits/ leave credits for victim-survivors, identification of appropriate working arrangements to prevent and deter all forms of violence and harassment, sanctions and penalties in case of violations, and protection against on for whistle blowers.

The CBA will likewise expressly indicate support measures or interventions to be provided to workers that have experienced domestic violence.

Section 8. Implementing Structure of the Workplace Policy in the Prevention and Elimination of Violence and Harassment. The implementation of the workplace policy, through any of the above indicated modalities, shall be jointly undertaken by the employer/ authorized employer representative and employee/ authorized employee representatives from the rank and file and supervisory employees in all concerned departments/ sections of the establishment, including organized workers' organizations or unions and SEBA, which may be done or carried out by any of the following committees:

- a. **Occupational and Safety and Health (OSH) Committee or its equivalent Committee.**²² Engaging the OSH Committee or its equivalent committee in workplace policy development is consistent with DOLE Department Order No. 252, series of 2025²³ (or the Revised Implementing Rules and Regulations of Republic Act No. 11058).

²² Item II, No. 6, Recommendation 206, ILO C190.

²³Part IV, Section 2, DOLE Department Order No. 230, s. 2021 (Guidelines on Support for Workers in the Informal Economy under RA 11313)

The OSH Committee shall be composed of the following:

1. Employer or representative as the chairperson *ex officio*;
2. Safety officer of the company or project as the secretary;
3. Safety officer representing the contractor or subcontractor, as the case may be, as members;
4. Physicians, nurses, certified first-aiders, and dentists as members, *ex officio*, if applicable; and
5. Workers' representatives who shall come from the union if the workers are organized or elected by the workers through a simple majority vote if they are unorganized, as members.

The Committee will effectively plan develop, oversee, and monitor the implementation of the workplace policy on violence and harassment. The Committee will likewise carry out quarterly safety and health audits relative to the establishment's compliance to this Guidelines.

- b. **Committee on Decorum and Investigation (CODI).** Violations committed or complaints filed under this Guidelines shall continuously be handled and resolved by the Committee on Decorum and Investigation²⁴, pursuant to RA 7877 and RA 11313 and its respective implementing rules and regulations. In the absence of such, establishments will constitute an equivalent committee similar to CODI.

The CODI or its equivalent shall be composed of at least one (1) representative each from the management, the union, if any, the employees from the supervisory rank, and from the rank-and-file employees.²⁵ The representatives of the workers, both the supervisory rank and rank-and-file employees, shall be selected among them through a majority vote. It shall be headed by a woman and not less than half of its membership shall likewise be composed of women.²⁶

Other functions, roles, and responsibilities, including the internal procedures for resolving any issues, complaints, or disputes arising from this Guidelines, shall subscribe to Section 4 of RA 7877 and Rule VIII of the implementing rules and regulations of Republic Act No. 11313 (Safe Spaces Act).²⁷

- c. **Family Welfare Committee (FWC).** For establishments with more than two hundred (200) workers, the FWC may be organized for the development, implementation, and monitoring of advocacy strategies and training interventions for all workers to complement the policy on the prevention and elimination of violence and harassment in the workplace, as provided for under Section 2 (b) of DOLE Department Order No. 56-2003. Establishments with less than two hundred (200) workers are further encouraged to establish a plant-level FWC to adopt and use the same approach.
- d. **Other implementing structure.** If the private establishment is organized, the development, implementation, and monitoring of advocacy strategies and training interventions for all workers on the workplace policy may be done through its Labor-Management Cooperation program and the Labor-Management Council (LMC), under Republic Act No. 6715 or "An Act to Extend Protection to Labor, Strengthen the Constitutional Rights of Workers to Self-Organization, Collective

²⁴ Article IV, Section 18, RA 11313.

²⁵ Section 4 (b) RA 7877

²⁶ Section 33 (c), Rule VIII, RA 11313

²⁷ Rule VI, Section 18, RA 11313 and Part I, Section 2 (f), DOLE D.O. No. 230-2021.

Bargaining and Peaceful Concerted Activities, Foster Industrial Peace and Harmony, Promote the Preferential Use of Voluntary Modes of Settling Labor Disputes, and Reorganize the National Labor Relations Commission, Amending for These Purposes Certain Provisions of Presidential Decree No. 442, As Amended, Otherwise Known as The Labor Code of the Philippines, Appropriating Funds Therefore and for Other Purposes”.

Section 9. Workplace Policy Components in the Prevention and Elimination of Violence and Harassment in the Workplace. Whether the said policy will be integrated as part of the negotiated and agreed terms under the CBA or a stand-alone workplace policy to be implemented by establishments, it will include the following components:

a. **Prevention, Mitigation, and Protection.** The workplace policy will ensure that all workers, regardless of rank and employment status, are to be informed of the company’s zero tolerance policy to all forms of violence and harassment in the workplace, as follows:

1. **Information Materials or Signages.** All establishments, regardless of employment size, are expected to post adequate signages on ILO C190 and other relevant information materials on violence and harassment, including gender-based sexual harassment. It will be placed and made visible in areas where workers usually congregate or work.

Establishments may coordinate with DOLE ROs and other government instrumentalities, such as the Philippine Commission on Women, for any available related information, education, and communication materials.

2. **Advocacy Activities.** All establishments will ensure the workers’ participation in advocacy activities that raise awareness on the problem of violence and harassment, including the elimination of all forms of violence against women and their children, such as the following:
 - i. 18- Day Campaign to End VAW, cognizant of RA 10398, or the “*An Act Declaring November Twenty- Five of Every Year as ‘National Consciousness Day for the Elimination of Violence Against Women and Children’*”
 - ii. National Women’s Day, as provided for by Republic Act No. 6949, or the “*An Act to Declare March Eight of Every Year as a Working Special Holiday to be Known as National Women’s Day*”

It will likewise encourage all male workers to organize and join the Men Opposed to Violence Everywhere (MOVE) or other similar male advocacy groups, in accordance with IACVAWC Resolution No. 01, s. 2019 (Enjoining All Government Agencies and Local Government Units to Support the Program on Male Involvement in Eliminating Violence Against Women and their Children and in Achieving Gender Equality and the Empowerment of All Women and Girls).

3. **Capacity Building.** All establishments may seek the assistance from the DOLE ROs as to the proper implementation of this Guidelines, including the provision of capacity building and other available technical assistance.

Whenever possible, capacity building activities on gender and development and gender equality, prevention of violence and harassment in the workplace, and ILO C190 may be included as part of the in-plant Family Welfare Program.

- b. **Enforcement and Remedies.** The workplace policy will establish and provide rules and procedures in order to expeditiously resolve complaints and cases on violence and harassment in the workplace, as follows:

1. **Grievance Redress Reporting Mechanism.** The OSH Committee and CODI will closely work together in coming up with a procedure in receiving and addressing reports or complaints related to violence and harassment in the workplace. It will specifically indicate the step-by-step procedure to be followed in case handling and resolution (see **Annex B: Sample Step-by-Step Grievance Redress Reporting Mechanism**). Establishment will ensure that this procedure is known to all workers and will form part of their onboarding training.

This grievance mechanism will be automatically activated once a report has been made. Furthermore, establishments shall ensure anonymity and confidentiality for those that have reported violence and harassment within the establishment, and while the CODI carries out its independent investigation. Dedicated repositories and communication channels will also be set up to safeguard all information to be collected, as part of the investigation process. Whenever possible, a dedicated trained staff will be designated to safeguard such information, including the proceedings done by the CODI.

In the event that the internal grievance redress mechanism or plant-level machinery fails to resolve the issue, or if the establishment is unorganized, non-unionized, and lacks an active internal tracking mechanism, either party may refer the dispute to the Single-Entry Approach (SEnA) at the nearest DOLE Regional/ Field/ Provincial Offices or the National Conciliation and Mediation Board (NCMB) or the National Labor Relations Commission for the 30-day conciliation-mediation.

2. **Referral Mechanism.** Employers will set-up a referral system, including support interventions, such as the provision of mental health and reintegration services, provided either by the government and private service providers, free of charge, to workers who are victim-survivors of violence and harassment.
3. **Alternative workplace arrangement and accommodation.** Employers are likewise encouraged to provide the following accommodation and arrangement for workers that reported incidents of violence and harassment in the workplace:
 - i. Paid leave benefit on top of existing leave benefits under company policy, collective bargaining agreement, the Labor Code of the Philippines, and special laws to allow the concerned employee to seek needed socio-emotional support from a competent mental health professional or worker²⁸;
 - ii. Alternative or flexible work arrangement, re-scheduling of work hours, and adoption of other work arrangements, including telecommuting; and
 - iii. Other benefits.

²⁸ Chapter 1, Section 4 (m) (p), Republic Act No. 11036.

4. **Non-retaliatory Provision.** The policy will include a statement aimed at protecting workers who reported or filed a complaint on workplace violence and harassment, or made the same in behalf of a fellow employee who is suspected to have experienced violence and harassment in the workplace.
- c. **Education and Training.** The workplace policy must ensure that all of its workers, regardless of rank, status, and employment arrangement, and the various labor and occupational safety and health-related committees in the establishment, including the members of the Committee on Decorum and Investigation, are oriented on the following topics:
1. Republic Act No. 7877 (Anti-Sexual Harassment Act of 1995), Republic Act No. 11036 (Mental Health Act), Republic Act No. 11313 (Safe Spaces Act), and Republic Act No. 9262 (Anti-Violence Against Women and Their Children Act of 2004);
 2. ILO Convention No. 190;
 3. Gender Sensitivity and the use of gender-fair language in all forms of company communication, including those used in the online space²⁹, to promote diversity and inclusion and deter discrimination, violence, or harassment through language, or other similar orientation; and
 4. Workplace policy preventing, deterring, and addressing violence and harassment
- d. **Monitoring and Evaluation.** Monitoring on the implementation and evaluation of the compliance to the policy on violence and harassment in the workplace will be conducted by the OSH Committee, in coordination with the HRMO, on a quarterly basis.³⁰ Changes and modifications to existing workplace policy shall be cooperatively undertaken by the employer, or duly recognized representatives of the establishments, and workers, including unions and registered workers' group or organization, or through the plant-level Labor-Management Cooperation.

Section 10. Role of Employers and Workers. Employers and workers are enjoined to uphold the core principles of ILO C190 and other relevant and related laws and policies by cooperatively resolving issues and concerns, including the institutionalization of enabling policies, structures, and mechanisms, and maximizing the utilization of plant-level Labor-Management Cooperation (if existing/ applicable), and Grievance Machineries, including the Single-Entry Approach (SEnA), arising from the implementation and interpretation of this Guidelines.

- a. **Role of Employers (including authorized representatives).** Employers are strongly encouraged to disseminate information, and develop support systems to implement this Guidelines. They are likewise expected to modify, adopt, and include into its Code of Conduct³¹ the following:
1. Adopt a zero-tolerance policy to all forms of violence and harassment in the workplace;
 2. Define forms of violence and harassments at the company level, which are aligned with existing national laws and policies. This definition shall be made in consultation with workers, including labor unions or workers' groups or organizations, and will be made to include internal (from co-workers, supervisors or managers) and external (from customers, and clients) sources³² of violence and harassment;

²⁹ Article II, Section 12, Republic Act No. 11313

³⁰ Section 4 of this Guidelines.

³¹ Section 33, Rule VIII of the IRR of RA 11313

³² Page 14, *Violence and Harassment at Work: A Practical Guide for Employers*. Geneva: International Labour Office, 2022.

3. Explicit prohibition to all forms of violence and harassment in the workplace;
4. Specify the rules and procedures to be followed in instances of breach in the implementation of this Guidelines;
5. Align the functions and responsibilities of the OSH, CODI, and plant level FWC with this Guidelines;
6. Protect victim-survivors, including the provision of adequate support services as indicated under Number 2, Letter B, Part II of this Guidelines;
7. Ensure the protection of whistle blowers, in cases of third-party reporting;
8. Submit required reporting form to DOLE on documented cases of violence and harassment in the workplace, using the prescribed reporting template indicated in Section 12 of this Guidelines; and
9. Continuously engage workers, including labor unions and workers' group or organization, whichever is applicable, in initiating updates and improvements in the implementation of this Guidelines, aligned with the spirit of tripartism and social dialogue.

b. **Role of Workers (including labor unions and registered workers' groups or organizations).** Workers, including labor unions and registered workers' groups and organizations, are expected to actively cooperate to the different initiatives and strategies implemented toward the prevention and elimination to all forms of violence and harassment in their place of work. They shall likewise ensure full participation to activities to attain the same purpose, such as:

1. Advocate for a violence and harassment free workplace, including the establishment of MOVE (Men Opposed Against Violence Against Women Everywhere) and other similar advocacy groups within the workplace to include all types of workers, regardless of rank and employment status;
2. Initiate and prioritize activities that will allow for better conversations in order to foster a safe and healthy work environment in the context of ILO C190 and other relevant and related laws and policies; and
3. Continuously engage company management, including duly authorized representatives and officers, whichever is applicable, in initiating updates and improvements in the implementation of this Guidelines, aligned with the spirit of tripartism and social dialogue.

c. **Recognition of Legitimate Management Prerogatives.** This Guidelines shall not prejudice employers from exercising legitimate management prerogative, including supervision, performance evaluation, disciplinary action, work assignment, and workplace investigation, provided these are exercised in good faith, without discrimination, and in accordance with the law.

Section 11. Role of the Department of Labor and Employment. The Department of Labor and Employment (DOLE) as the lead and focal agency on matters relating to the enforcement of relevant labor and employment laws and issuances shall undertake the following to ensure the full implementation of this Guidelines:

a. **Inspection Activities in Private Establishments.** As an instrument that allows the DOLE Secretary to exercise its visitorial and enforcement powers, under the Labor Code as renumbered, to guarantee the private establishment's continued compliance to labor laws and standards, including occupational safety and health standards, the DOLE, through its regional offices, shall continue to conduct yearly spontaneous, random, and unannounced inspections³³ to ensure the full

³³ Section 24 of the IRR of RA 11313.

compliance of employers and workers with the established rules and obligations under Article IV of RA 11313, Section 4 of RA 7877, and Section 43 of RA 9262. This shall also cover the administration and enforcement of labor standards through a Technical and Advisory Visit or an Occupational Safety and Health Investigation.

- b. Request for Assistance through the Single-Entry Approach (SEnA).** The DOLE shall utilize the Single-Entry Assistance Desk (SEAD) of SEnA as a help desk to assist workers that have experienced violence and harassment in the workplace, with the exemption of those conditions identified under Section 2, Rule II of DOLE Department Order No. 249-25. The request shall be filed in the form of a Request for Assistance (RFAs) that may be filled physically or electronically thru <https://arms.dole.gov.ph> by concerned workers in all DOLE Regional Offices, including field, provincial, and satellite offices, the National Conciliation and Mediation Board, and its regional branches, and the National Labor Relations Commission and its regional arbitration branches.

The Single-Entry Approach Desk Officer (SEADO) for the day shall likewise be designated to assist workers and employers in resolving conflicts or cases arising from the implementation and interpretation of this Guidelines. Queries regarding the same shall be done through the RFAs.

The DOLE shall likewise utilize its existing DOLE Hotline 1349 and similar systems to be prospectively developed to receive complaints from employees in private establishments, including those involving cases of gender-based sexual harassment.

- d. Provision of Technical Assistance through the Family Welfare Program.** The DOLE Regional Offices, through the Family Welfare Program Focal Person, shall be tasked to provide needed technical assistance to establishments in adopting a policy toward the prevention and elimination of violence and harassment in the workplace.
- e. Development and Dissemination of Learning Modules and related Knowledge Materials.** The DOLE, through the Bureau of Workers with Special Concerns (BWSC), shall monitor compliance to this Guidelines. It shall further develop the internal guidelines to be adopted by the Department to ensure its proper implementation and provide whatever technical assistance needed to DOLE Regional Offices in the promotion of the efforts and programs related to ILO C190 in their respective areas of jurisdiction. Needed knowledge materials, including its online learning versions, shall be developed by the BWSC, in coordination with DOLE Regional Offices, to assist establishments in complying with this Guidelines and promote a better understanding about workers' rights and employer responsibilities and obligations under ILO C190, RA 7877, and RA 11313.
- f. Engagement with Other Government Agencies and Instrumentalities.** Understanding the expansive nature of ILO C190, covering other set-ups/ arrangements, conditionality, and class of individuals currently not covered by this Guidelines, the DOLE, through the BWSC, shall secure the support and cooperation of other government agencies and instrumentalities, both local and national, with roles and responsibilities under the Convention. It shall include, among others, workers in the public sector, workers' travelling through public spaces, workers in the digital platform, and those with no established employer-employee relationship such as volunteers and not covered by the Labor Code, as

renumbered. Existing inter-government agency committees such those established under Section 39 of Republic Act No. 9262 (or the Anti-Violence Against Women and their Children (VAWC) Act of 2004) and Section 34, Rule IX of the IRR of the Safe Spaces Act, and national commissions or bodies with mandates on matters pertaining to human rights, gender, and women's empowerment shall also be consulted on said subject matter.

Section 12. Confidentiality. All worker information related to the incidence of violence and harassment in the workplace shall be handled and protected in accordance with the relevant provisions under Republic Act No. 10173 (or the Data Privacy Act of 2012) to prevent unauthorized access and disclosure of information related to any report, complaint, or case. Employers are required to set-up internal guidelines or protocols and identify authorized personnel who may access, use, process, or possess such information. Such information may only be provided to relevant authorities upon written requests and consent of concerned workers or as ordered by the regular courts.

Section 13. Reporting and Record Keeping. All employers shall report to DOLE every January 30 of the following year the status of the adoption or formulation of a workplace policy preventing and eliminating violence and harassment in the workplace including the total number and status of cases filed, pending, and disposed. The prescribed reporting form to DOLE (see **Annex C: Violence and Harassment Prevention in the Workplace Report Form**) can be accessed and shall be uploaded to this link: <https://reports.dole.gov.ph>.

The HRMO, of the private establishment, will keep a record of all files pertaining to the establishment's compliance to this Guidelines that shall be made readily available upon request by the authorized representative of the Secretary of Labor and Employment.

Section 14. Support for Workers in the Informal Economy. The DOLE, through the BWSC, and in coordination with concerned government agencies and stakeholders, shall develop Guidelines on the provision of appropriate mechanisms and interventions, including redress mechanisms, for workers in the informal economy.

Section 15. Periodic Review. The DOLE, through its BWSC, is further directed to conduct a periodic review of this Guidelines every three (3) years, after its effectivity, or as the need arises, in consultation with relevant stakeholders and the regional and national tripartite industrial peace councils.

Section 16. Repealing Clause. All orders, rules and regulations, guidelines, and other policies or parts thereof which are contrary to or inconsistent with this Guidelines are hereby repealed, amended, or modified accordingly.

Section 17. Separability Clause. If any provision or part of this Guidelines is held invalid or unconstitutional, the remaining provisions not affected thereby shall remain valid and subsisting.

Section 18. Criminal and Other Actions. Criminal liability for the willful commission of any of the unlawful acts as provided for in the Labor Code, as renumbered; provided further that the institution of any criminal action under this Guidelines shall not bar the aggrieved party from filing an entirely separate and distinct action for claims for damages

and other affirmative reliefs. The actions hereby authorized shall proceed independently of each other.³⁴

Section 19. Effectivity. This Guidelines shall take effect fifteen (15) days after the date of its publication in a newspaper of general circulation.

Manila, Philippines, 31 July, 2026.


FRANCIS N. TOLENTINO
Secretary


³⁴ Section 5, DOLE D.O. No. 251, s. 2025, or the *New Implementing Rules and Regulations of Article 133 [135] of the labor Code, as amended by Republic Act No. 6725, otherwise known as "An Act Strengthening the Prohibition on Discrimination against Women with respect to Terms and Conditions of Employment,"* and as renumbered by Republic Act No. 10151".